

Prestonfield Homeowners Association

PHOA

Rules and Regulations

The Board of Directors
Prestonfield Homeowners Association
Adopted: 7/11/13

Rules and Regulations

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1 Introduction

The Board welcomes you to The Prestonfield Home Owners Association. We extend our best wishes to you in your home and hope you will enjoy residing in our community.

The rules and regulations have been established to keep the community running smoothly and to ensure pleasant, comfortable, enjoyable living and to enhance the resale value of your home at The Prestonfield Home Owners Association. The information contained in this document is for achieving and maintaining this goal, as well as to comply with the provisions of the Declarations of Covenants, Conditions and Restrictions for The Prestonfield Home Owners Association ("Declaration").

2 Property Use

Except for residence office/administrative functions, homes are to be used for residential purposes only. No overt business, commerce, or trade may be transacted out of a home. A homeowner may maintain a small supply of samples or materials, professional records, receive mail and conduct telephone communications. The preceding limitations shall not apply to home occupations permitted under the applicable zoning ordinance, codes and regulations of the City of West Chicago.

3 Home Exterior

3.1 General Construction Requirements

Improvements shall be harmonious with the original architectural character of the neighborhood. All approved alterations must be limited to the Homeowner's property. All technical and engineering requirements are the responsibility of the Homeowner. Any damage done by a contractor on Community Areas must be restored within a reasonable time at the cost of the homeowner who has hired the aforementioned contractor. The Board of Directors may limit the time for the required repair. Access for equipment used during the project must be placed in the homeowner's driveway or elsewhere on the homeowner's property and must be removed immediately after the completion of the project. No building materials, dirt or trash containers are to be placed on the street or the Community Area, except for regular trash pickup.

3.2 Lawns

Each homeowner has the responsibility to maintain their landscape, mow, weed, and trim their lawn. The lawn shall be cut in a manner whereby the grass shall not exceed eight inches (8") in height. Keep yard clear of debris. Shrubs, trees, landscaping or other improvements must not impair the view of others nor encroach upon or overhang any sidewalk or pedestrian way.

3.3 Antennas/Satellite Dishes

Satellite dishes (less than 1 meter in diameter) and simple mast antennas shall be permitted but must be installed to not be visible from the front of the home. (Article 8 Section 9)

3.4 Fences

Fencing installed on a homeowner's lot by the developer shall be the responsibility of each homeowner to maintain. (Article 3 Section 3)

Additional fencing added by a homeowner may only be board on board, cedar fencing with a height not to exceed five (5) feet. (Special Amendment 2) An A&A application for a five (5) foot ornamental aluminum fence may also be submitted for approval. Homeowner agrees to abide by the requirements of the City, and will submit a building permit and J.U.L.I.E. dig number with their A&A application. A&A application must be submitted and approved PRIOR to any work being performed or this will result in an immediate fine.

3.5 Swimming Pools

No above ground pools are allowed. In ground pool are allowed. Homeowner agrees to abide by the requirements of the City and will submit a building permit and J.U.L.I.E. dig number with their A&A application. A&A application must be submitted and approved PRIOR to any work being performed or this will result in an immediate fine.

Temporary Pools are allowed in the backyard up to a maximum of 12' in length or diameter between the periods of May 1st to Labor Day of each year as long as there's a fence around the parameter of the entire backyard as stated in Article 3 Section 3. A fine of \$25 per day will be assessed for every day the temporary pool is not taken down after Labor Day.

3.6 Garbage Disposal

All rubbish, trash, or garbage shall be kept so as not to be seen from neighboring Homes and streets, and shall be regularly removed from the Premises, and shall not be allowed to accumulate thereon. Garbage may not be burned on a lot. Garbage may not be placed out before 5 pm on the day before pickup and placed back in garage before midnight the day of pick up. Exclusive of Brush.

3.7 Alteration and Additions

Any additions, alterations or improvements, including, without limitation, changes in the exterior color of a Home, construction of awnings, changes or additions to patio or deck, or other similar improvements, made to any Lot or any part of the Home which is visible from outside of the Home require an A&A application submitted and approved PRIOR to any work being performed. (Article 3 Section 5) (Examples are, but not limited to, Front Doors, Garage Doors, and Paint Color)

4 Vehicles

No motor vehicles in non-operative condition, commercial equipment, commercial vehicles* shall be parked anywhere on the Property except in garages. No vehicles may be parked over public walkways. No recreational vehicles, all-terrain vehicles, boats, campers, motor homes, trailers, minibikes, or snowmobiles may be parked on the driveways or yards for more than 72 hours in a one-week period. Recreational vehicles shall not include vans or minivans. Storage within a garage is permitted.

*The term "Commercial Vehicle" means any vehicle, and wheeled equipment bearing any sign, logo, or writing, which relates or refers to any commercial enterprise or entity. Also these vehicles are of one-ton chassis or more, or with storage box of ten feet or higher from the ground to the top, or are more the 96" (8 feet) wide. Except for maintenance or emergency vehicles, no

vehicular traffic or parking will be permitted on the Community Areas except as may be permitted by the Board.

Vehicles must not be left in a state of disrepair in driveways; repairs should be done in the garage.

5 Community Areas

The Association has the responsibility to provide all necessary maintenance and services with respect to the Community Areas, including maintenance, repair, and replacement of all trees, shrubs, and grass and landscaping. It also has the responsibility for the maintenance, repair, and replacement of utilities or portions thereof, which are maintained by a public body.

The use, maintenance, and operation of the Community Area shall not be obstructed, damaged, or unreasonably interfered with by any Homeowner, nor shall anything be stored in the Community Area without the prior consent of the Board except as hereinafter expressly provided. Nothing shall be done or kept in a home or in the Community Area, which would be in violation of any law. No obnoxious or offensive activity shall be carried on outside any home or Community Area, nor shall anything be done therein, either willfully or negligently, which may be or become an annoyance or nuisance to any other Homeowner within Prestonfield Homeowners Association.

6 Pets

No animals, poultry or livestock of any kind except common household pets shall be raised, bred or kept anywhere on the Property or Community Area. The definition of "common household pet" as used herein shall only include pets commonly sold in a pet store. Pets may only be housed within the residence. Decks or patios shall not be included as part of the home for this definition.

Any pets causing or creating a nuisance or unreasonable disturbance or causing or creating damage to the Community Areas, including landscaping, in the opinion of the Board may be by three (3) days written notice, prohibited from entering upon the Community Areas and removed from the Property.

All dogs must be kept on leashes when outside the owner's property. Homeowners shall remove any waste from the Community Areas or outside their home caused by their household pets. No more than what the city of West Chicago dictates on how many pets can be kept in any dwelling unit, with the exception of a new litter up to 4 months old.

7 Signage

Signs are not allowed on parkway or city property per the City of West Chicago.

Garage/yard sale signs: Only one sign per dwelling unit no more than three times a year for a maximum of no more than 4 days each time.

No advertising sign, except one "For Sale" or "For Rent" sign of not more than five (5) square feet shall be permitted on any Lot.

Political signs: Homeowners may place political signs in their yards no earlier than 30 days prior to the election and must remove them no later than 7 days after the election. No more than 1 sign per candidate per yard.

Home security signage is acceptable but must be posted within 2 feet of the dwelling unit and no larger than 18" by 18".

8 Nuisance

No nuisances, noxious or offensive activity shall be carried on in the Community Areas or on a residence's property or in any home (including garages) nor shall anything be done therein, either willfully or negligently, which may become an annoyance or nuisance to the owners or occupants of any home. (Article 8 Section 6) In such cases, homeowners are to refer nuisance complaints to local law enforcement authorities.

9 Violations and Fines

If someone is believed to be violation of any of the provisions of the Declaration and By-Laws or Rules and Regulations, a signed, written complaint must be submitted by a property owner. A written complaint form prescribed by the Board shall be sent to the owner. Owners are responsible for the conduct of all residents and guests occupying or visiting their home.

After initial verification of the validity of the claim by the Board / Committee, the person charged with the violation will be given written notice of the complaint, informing the owner of the alleged violation and will be given a warning not to repeat or remedy the conduct or action alleged. You have the right to appeal the decision. To appeal the decision, you must send a WRITTEN response to the Management Company so they can include your appeal hearing on the agenda for the next scheduled meeting of the Board of Directors

At the hearing, they will have the opportunity to present a defense and respond to accusations. All hearings will proceed with or without the presence of the accused Owner, so long as notice has been sent in advance and a reasonable exchange has occurred to negotiate a suitable meeting time.

The hearing will proceed based upon witness complaints and/or witness testimony. The Board/Committee will weigh all evidence prior to rendering a finding. All hearings shall be conducted in a closed forum unless otherwise requested by the accused party. In the case of an open hearing, the board shall provide at least two weeks' notice to homeowners by its discretion acceptable means of communication.

If any resident is found guilty of a violation, the Board will notify the guilty party in writing and a fine may be charged to the Owner of the home in which the guilty person resides and collected within thirty (30) days.

There will be a \$50.00 fine for the first violation, provided the Owner has not been fined for the same violation within the last year. If the Owner has been fined for the same violation within the last year, the fine will be \$75.00. Third and subsequent fines will be \$100.00 for each infraction. Continuing violations may incur a daily fine of up to \$25.00 per day, up to a maximum of \$500.00. In the event of any violation of the Rules and Regulations, Declaration or By-Laws of the Association, the Board reserves the right to pursue any and all legal remedies to compel enforcement, legal and equitable. Any and all costs and fees shall be assessed back to the offending owner at the time they are incurred.

10 ASSESSMENT COLLECTION POLICY

1. 30 day late Assessment bills mailed with a copy of the Declarations page (sect 7.02 and 7.03) and our Collections Policy illustrating late payment penalties and interest.
2. All late fees and finance charges would be forgiven with payment of the Assessment in full by March 31st
3. After 90 days, a documentation service fee of \$25 is assessed along with an ongoing 18% per annum Finance Charge (calculated per month from the 31st day of the original billing).
4. If a balance reaches \$1,000 or more, a 30-day demand letter is sent out by Management.
5. If no reply to the 30 day Demand Letter the HOA may bring legal action to recover the balance including Attorney's and all other fees.

All legal fees incurred by the Association in an attempt to collect assessments will be charged to the unit owner as provided in the Declaration and By-Laws of the Association.

11 PROCESS FOR COMMUNICATING ISSUE OR QUESTIONS TO PHOA

1. Contact **Association Partners, Inc. 630-653-7782**
2. If any question or issue cannot be addressed by **API** and requires Board response or approval, proceed to #3.
3. Submit in writing the question and issue to: **Info@apimanagers.com**
Or mail to:
Prestonfield Homeowners Association
c/o Association Partners, Inc.
25W560 Geneva Road Suite 16
Carol Stream, IL 60188
4. If the issue or question is not submitted in writing by the homeowner, the Board will not be required to respond and the homeowner waives the right to seek for resolution.
5. After reviewing the written request, the Board will provide API the information. API will then respond to homeowner in writing. The Board/API will respond in a timely manner to the homeowner. However, timeframe for response is subject to the urgency of the question or issue. Nature of the urgency will be determined by the Board.
6. If the homeowner deems the response is not to his or her satisfaction, the homeowner may request for a hearing. Hearing will be held at the next scheduled quarterly Board meeting unless the President deemed necessary to hold a hearing sooner or later.

**PRESTONFIELD HOMEOWNERS ASSOCIATION
ALTERATIONS & ADDITIONS APPLICATION**

NAME: _____

ADDRESS: _____

PHONE:(H)_____ (W) _____

EMAIL: _____ CELL: _____

DESCRIPTION OF IMPROVEMENT(S) _____

**THIS PROJECT SHALL CONFORM WITH ANY REQUIREMENTS SET FORTH BY THE CITY,
COUNTY AND STATE OF ILLINOIS AND THAT ANY NECESSARY PERMITS ARE OBTAINED
PRIOR TO PROJECT START**

DIMENSIONS: _____

MATERIALS: _____

COLOR: _____ ESTIMATED COST: _____

PLEASE ATTACH:

1. PLAT OF SURVEY SHOWING THE EXISTING STRUCTURES AND:
 - A. THE SPECIFIC LOCATION OF THE PROPOSED ADDITION OR ALTERATION
 - B. ANY CHANGES TO BE MADE TO THE LANDSCAPING OR GRADING (ANY SUCH CHANGES ALSO REQUIRE THE PRIOR WRITTEN APPROVAL OF THE CITY)
2. PICTURE, PLAN OR DRAWING OF THE IMPROVEMENT(S)

I/We submit this application pursuant to the Prestonfield HOA Declaration. I/We acknowledge and agree that it is my/our responsibility to comply with all City and County requirements regarding the proposed alteration or addition. I understand this may take up to 30 days to approve from receipt. Thank you.

OWNER: _____ DATE: _____

OWNER: _____ DATE: _____

APPROVED BY: _____ DATE: _____

COMMENTS: _____

PRESTONFIELD HOMEOWNERS ASSOCIATION VIOLATION REPORT

Today's Date: _____ Date of Occurrence: _____

Offender's Name: _____

Address: _____, _____ IL _____

Violation Location: _____

Type of Violation:

1. _____

This violation above has been in violation for _____ days, and it _____ (has or has not) been reported before by me? I picture of the above violation is enclosed an marked as well? YES/NO Approximate Time Violation took Place: _____.

2. _____

This violation above has been in violation for _____ days, and it _____ (has or has not) been reported before by me? I picture of the above violation is enclosed an marked as well? YES/NO

Report submitted by: Please Print Name: _____

ADDRESS: _____

Phone: Work: _____ Home: _____

Cell: _____ Email: _____

PLEASE NOTE:

A violation report must be completely filled out or the complaint will not be considered valid by the Board of Directors. I understand if I need to appear at the next board meeting if requested by the board of directors and I am currently a homeowner PRESTONFIELD HOA.

X _____ Date: _____

Prestonfield Homeowners Association

HOMEOWNER QUESTIONNAIRE

IN ORDER TO UPDATE YOUR ASSOCIATION'S RECORDS, WE WOULD APPRECIATE YOUR TAKING A FEW MINUTES TO COMPLETE THE QUESTIONNAIRE BELOW AND MAIL TO:

ASSOCIATION PARTNERS, INC.
25W560 GENEVA ROAD SUITE 16
CAROL STREAM, IL 60188

NAME (S) _____ DATE _____

UNIT ADDRESS _____

MAILING ADDRESS _____

HOME PHONE _____ OFFICE PHONE _____

CELL PHONE _____ OTHER _____

E-MAIL ADDRESS _____

E-MAIL ADDRESS _____

OTHER OCCUPANTS & RELATIONSHIP TO HEAD OF HOUSEHOLD

NAME _____ RELATIONSHIP _____

NAME _____ RELATIONSHIP _____

NAME _____ RELATIONSHIP _____

IN CASE OF AN EMERGENCY NOTIFY: _____

ADDRESS _____

PHONE _____ RELATIONSHIP _____

VEHICLES

MAKE / YEAR

COLOR

LICENSE
